

CROSS BORDER TRANSFER POLICY

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This document
establishes and
governs the strategy
for cross-border data
transfers at BAL.

Bajaj Auto Limited, hereinafter referred to as “We” or “Us” or “Organization” or “BAL”, has created this strategy document to demonstrate its commitment to maintain privacy of its customers/data subjects by safeguarding their personal data.

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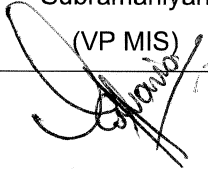
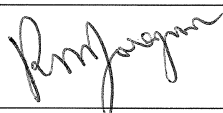
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1. Objective

The objective of this document is to ensure the secure and compliant transfer of personal data across geographic, including transfers between different countries or regions, each with their own data privacy/protection regulation, this document is designed to align with these data protection regulations to protect personal data, mitigate privacy risks, and preserve customer trust while supporting global operations.

2. Overview

This document emphasizes the strategy for managing secure cross-border transfers of customer personal data. As BAL operates across multiple countries and processes and stores personal data in India, it is essential to ensure compliance with applicable data privacy/protection regulation, governing cross-border data transfers.

Please note that for the purpose of this policy, the use of “data” and “information” shall be considered synonymous and has been used interchangeably. For the purpose of this policy, the term personal data refers to customer personal data.

3. Scope

This policy applies to all activities, processes, systems, and personnel involved in the processing of customer personal data related to connected electric vehicles to ensure compliance with applicable data privacy/protection regulation in all personal data processing activities across Bangladesh, Brazil, Colombia, Greece, Indonesia, Kenya, Mexico, Nepal, Philippines, Portugal, Saudi Arabia, Spain, Sri Lanka, Thailand, Turkey, UAE.

Please refer Appendix B for country specific regulation. The appendix covers the cross-border data transfer requirement for the countries listed above.

This appendix needs to be monitored every six months and any changes to the respective country specific privacy related regulation should be incorporated.

4. Policy

a. Strategy for transferring Personal data across borders.

BAL employs the following mechanisms to ensure secure and compliant cross-border data transfers:

- Contractual Clauses: These legally binding contracts between BAL and its data processors ensure that data is transferred in compliance with applicable data privacy/protection regulation of respective countries.
- Binding Corporate Rules (BCRs): For intra-group data transfers, BAL will implement BCRs to ensure that all subsidiaries within the organization adhere to the same data protection standards.

- Adequacy Decisions: For countries with recognized adequacy decisions by relevant regulatory authorities, data transfers may be conducted without the need for additional safeguards.

b. Requirement prior to transfer of data across borders

- The data protection authority may authorize the transfer of personal data to another country, provided that the recipient ensures an adequate level of data protection in line with applicable data privacy/protection regulation, such transfers are deemed permissible.
- The respective data protection authority approves a transfer or set of transfers as permissible due to a situation of necessity.
- The transfer is made in accordance with contractual clauses that have been approved by the respective data protection authorities with privacy/protection standpoint.
- The data subject should be notified about the cross-border data transfer during the data collection and has given their consent for such a transfer.
- In case of sensitive personal data, BAL shall be required to demonstrate explicit consent from the data subject whose data needs to be transferred.
- BAL shall ensure that personal data that is being transferred is provided adequate level of protection in accordance with applicable data privacy/protection regulation in and outside of country borders.
- BAL shall ensure that the rights of data subject whose personal data is being transferred are adequately protected. For more details on data subject rights please refer Data Subject Rights Request procedure (Policy no. BAL/MIS/24-25/ 075).

c. Risk Assessment and Mitigation

BAL should regularly conduct risk assessments/transfer impact assessment to evaluate the potential risks associated with cross-border data transfers. The following factors to be considered:

- Legal Risks: Understanding the data privacy/protection regulation and data protection practices of the destination country. BAL will assess whether the data privacy/protection regulation in the country where the data shall be stored or processed provides adequate protection for Personal data.
- Privacy Risks: Evaluating whether the transfer could expose personal data of the data subject to unauthorized access, loss, or disclosure during the transfer.
- Proper security measures must be implemented to protect data and ensure compliance with privacy regulations throughout the process. Where necessary, BAL should implement security measures, such as encryption, anonymization, or pseudonymization, to reduce identified risks.
- Operational Risks: Identifying and addressing operational risks related to data security during the transfer process, including data breaches, technical failures, or human errors.

c. Governance and Responsibilities

The following individuals and teams are responsible for ensuring compliance with this document:

Roles	Responsibilities
Data Privacy Team	Ensuring that data processing activities comply with applicable data privacy/protection regulation.
Legal Team	Support for reviewing the legal frameworks.
MIS/Information Security Team	Ensure the implementation of technical measures for data security during cross-border transfers.
Business Units	Ensure that the data transfer is essential for business purposes, aligns with company processes, and complies with the requirements outlined in this policy.

d. Maintenance of Audit Trail

BAL shall maintain records/evidence related to cross-border data transfers to ensure compliance with this document and applicable data privacy/protection regulation.

5. Review Frequency

This document is subject to annual review or earlier if there are changes in the business environment or applicable data privacy/protection regulations. Any updates to this document will be recorded at the beginning of the document.

6. Appendix

a. Definitions

- **Data Subjects:** A data subject is a natural person whose personal data is collected, stored, or processed.
- **Personal data:** Any information relating to an identified or identifiable natural person. An identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors.
- **Sensitive Personal Data (SPD):** Personal data revealing racial or ethnic origin, political opinions, religious or philosophical beliefs, or trade union membership, and the processing of genetic data, biometric data for the purpose of uniquely identifying a person, health data, data concerning a person's sex life or sexual orientation.

- **Controller:** Any natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of Personal data.
- **Processor:** Any means a natural or legal person, public authority, agency, or other body which processes Personal data on behalf of the controller.
- **Processing:** Any operation or set of operations which is performed on Personal data or on sets of Personal data, whether by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.
- **Customer:** A customer is a person who buys goods or services from another business.
- **Cross-Border Transfer:** Cross-border transfer refers to the processing of personal data by a controller or processor operating across multiple jurisdictions where they have establishments.

****NOTE:** The definitions listed above may vary as per the scope of the document. Please refer the Country specific requirement sheet: Definitions for specific country.

b. Applicable Regional specific laws

Below is a list of the countries within scope and their corresponding data protection regulations. Please refer the detailed requirements for cross-border data transfers in each country In the excel sheet.

S. No.	Country	Regulation
1	Thailand	Personal data Protection Act 2019 ('PDPA')
2	Sri Lanka	Personal data Protection Act
3	Nepal	Privacy Act 2075 (2018);
4	Bangladesh	The Data Protection Bill, 2023 (Draft)
5	Indonesia	The personal data Protection Law, 2022 (PDPL)
6	Saudi Arabia	1. Personal data Protection Law (PDPL) 2021 2. Personal data Protection Interim Regulations (PDPIR)
7	UAE	UAE Federal Decree-Law No. 45 of 2021 on the Protection of Personal Data
8	Mexico	The Federal Law on the Protection of Personal data held by Private Parties - 2010
9	Turkey	Law on the Protection of Personal data No. 6698 dated April 7, 2016 (LPPD).
10	Kenya	Data Protection Act (DPA), 2019
11	Colombia	Law 1581 of 2012 (General Personal data Protection Law)
12	Philippines	The Data Privacy Act of 2012(DPA)
13	Brazil	Law No. 13.709 of 14 August 2018, General Personal data Protection Law ('LGPD')
14	Greece	

15	Portugal	The General Data Protection Regulation (GDPR) 2018
16	Spain	